

Plaintiff, it is his duty and his alone to maintain adequate contact information with the court and opposing counsel.

Moving party is awarded \$2,500 in reasonable attorneys' fees and costs as sanctions due and payable by Plaintiff and Plaintiff's counsel jointly and severally within 30 days.

Moving party is advised that multiple discovery motions should not be combined into a single filing. (See [Govt. Code § 70617\(a\)\(4\)](#) (setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing); see also Weil & Brown, *Civil Procedure Before Trial*, [8:1140.1] at 8F-60 (The Rutter Group 2011) ("Motions to compel compliance with separate discovery requests ordinarily should be filed separately.") In the future, the court will not take action on an omnibus motion. Defendant to submit an order after hearing and is excused with compliance with Rule of Court, 3.1312.

HILL v. SMITH
Case No. CU26-03851

Demurrer

TENTATIVE RULING:

Parties to appear. Defendant's motion fails to give notice of the court's tentative ruling system as required by Local Rule 3.9(d).

Defendant Smith's unopposed demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Plaintiff's personal injury action is barred by the statute of limitations. The statute of limitations for any injury caused by the wrongful act or neglect of another is two years. (Code Civ. Proc. § 335.1.) Plaintiff alleged that the automobile accident that caused his injuries occurred on October 6, 2023. (Complaint, §§ MV-1, GN-1.) Plaintiff did not file his action until April 23, 2026. The running of the statute of limitations appears "clearly and affirmatively" from the date alleged. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324; *Lockley v. Law Office of Cantrell* (2001) 91 Cal.App.4th 875, 881.)

Plaintiff has made no attempt to meet his burden of showing "in what manner he can amend the complaint and how that amendment will change the legal effect of his pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)
